

1 questions and answers had been given in Court.

2 Statements of a party opponent. A party may
3 offer into evidence any oral or written statement made
4 by an opposing party outside the courtroom.

5 When you evaluate evidence of a statement,
6 you must consider these questions; there are two:

7 One, do you believe that the party actually
8 made the statement?

9 If you do not believe that the party made the
10 statement, you may not consider the statement at all.

11 And two, if you believe that the statement
12 was made, do you believe it was recorded accurately?

13 You should view testimony about an oral
14 statement made by a party outside the courtroom with
15 caution.

16 Okay. We turn now to causes of action.
17 Negligence.

18 Franciscus Dylan Rosario claims that he was
19 harmed by Subhi Abdelhalim's negligence. To establish
20 this claim, Franciscus Dylan Rosario must prove all
21 the following, there are three elements:

22 One: That Subhi Abdelhalim was negligent.

23 Two: That Franciscus Dylan Rosario was
24 harmed.

25 And, three: That Subhi Abdelhalim 's
26 negligence was a substantial factor in causing
27 Franciscus Dylan Rosario's harm.

28 Basic standard of care.